



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*

*Majority Research Staff*

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**SB 1624: photo radar enforcement; civil penalty**

## **BIASIUCCI FLOOR AMENDMENT**

1. Excludes red light and school crossing violations from civil traffic violations that result from a photo enforcement system.
2. Stipulates that of the \$75 for the civil penalty, \$15 must be deposited into the Peace Officer Training Equipment Fund.
3. Makes technical and conforming changes.

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4/6/2026

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BIASIUCCI SUBSTITUTE FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1624

I move the following SUBSTITUTE amendment to the TRANSPORTATION & INFRASTRUCTURE Committee Amendment to  
SENATE BILL 1624 (Reference to Senate Engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.  
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.  
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.  
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.  
<<Green carets>> indicate a section added to the bill.  
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 28-1602, Arizona Revised Statutes, is amended to  
3 read:

4 28-1602. Photo enforcement violations; law enforcement  
5 review; violation; classification; service of  
6 process; no duty to identify photo or respond;  
7 civil penalty; definitions

8 A. Notwithstanding any other law, if a person receives a notice of  
9 violation in the mail for a violation of chapter 3, article 3 or 6 of this  
10 title or of a city or town ordinance for excessive speed or failure to  
11 obey a traffic control device that is obtained using a photo enforcement  
12 system, the person does not have to do either of the following:

13 1. Identify who is in the photo.

14 2. Respond to the notice of violation.

15 B. The notice of violation must state the following:

16 1. The notice OF VIOLATION is not a court issued document and the  
17 recipient is under no obligation to identify the person or respond to the  
18 notice OF VIOLATION.

19 2. Failure to respond to the notice OF VIOLATION may result in  
20 official service that may result in an additional fee being levied.

21 C. Before a citation is issued, a law enforcement agency must  
22 review evidence that is recorded by a photo enforcement system to  
23 determine whether a violation of chapter 3, article 3 or 6 of this title  
24 or of a city or town ordinance for excessive speed or failure to obey a  
25 traffic control device occurred.

1 D. A photo enforcement company may not determine whether a  
2 violation of chapter 3, article 3 or 6 of this title occurred for the  
3 purpose of ~~the issuance of~~ ISSUING a citation. A violation of this  
4 subsection is a class 1 misdemeanor.

5 E. In addition to any other means authorized by the Arizona rules  
6 of civil procedure, alternative service of process must be sent by  
7 certified mail with an additional copy by regular mail and a notice must  
8 be posted on the front door of the business or residence and, if present  
9 and accessible, a residence's garage door. Service of the complaint is  
10 complete on filing the mailing receipt and proof of posting in the court  
11 having jurisdiction of the violation. Notwithstanding any other law, a  
12 person's driving privileges may not be suspended or revoked as a result of  
13 a citation that is served by alternative service of process under this  
14 subsection.

15 F. If a law enforcement agency issues a citation as a result of a  
16 photo enforcement system and serves the citation in a manner other than  
17 what is prescribed by section 28-1593, subsection A, the agency shall  
18 inform the person that there is no obligation to identify the driver or  
19 respond to the citation. Failure to respond to the citation will result  
20 in the probability that the person will be formally served pursuant to  
21 state law and the Arizona rules of civil procedure which will likely  
22 result in the person being required to pay the cost of the service.

23 G. IF A PERSON IS FOUND RESPONSIBLE FOR A CIVIL TRAFFIC VIOLATION  
24 THAT RESULTS FROM A PHOTO ENFORCEMENT SYSTEM[, EXCEPT FOR A RED LIGHT  
25 VIOLATION PURSUANT TO SECTION 28-645 OR A SCHOOL CROSSING VIOLATION  
26 PURSUANT TO SECTION 28-797]:

27 1. THE PERSON IS SUBJECT TO A CIVIL PENALTY OF NOT MORE THAN \$75.  
28 [\$15 OF THE CIVIL PENALTY COLLECTED SHALL BE DEPOSITED IN THE PEACE  
29 OFFICER TRAINING EQUIPMENT FUND ESTABLISHED BY SECTION 41-1731.]

30 2. A DEPARTMENT OR AGENCY OF THIS STATE MAY NOT CONSIDER THE  
31 VIOLATION FOR THE PURPOSE OF DETERMINING WHETHER THE PERSON'S DRIVER  
32 LICENSE SHOULD BE SUSPENDED OR REVOKED.

33 3. A COURT MAY NOT TRANSMIT ABSTRACTS OF RECORDS OF THE VIOLATION  
34 TO THE DEPARTMENT.

35 4. AN INSURER MAY NOT CONSIDER THE VIOLATION AS A TRAFFIC VIOLATION  
36 AGAINST THE PERSON FOR THE PURPOSES OF ESTABLISHING RATES FOR MOTOR  
37 VEHICLE LIABILITY INSURANCE OR DETERMINING THE INSURABILITY OF THE PERSON.  
38 AN INSURER MAY NOT CANCEL OR REFUSE TO RENEW ANY POLICY OF INSURANCE  
39 BECAUSE OF THE VIOLATION.

40 ~~G.~~ H. For the purposes of this section:

41 1. "Notice of violation" means a notice issued by a photo  
42 enforcement company or municipality that is not a uniform traffic ticket  
43 and complaint.

44 2. "Photo enforcement system" has the same meaning prescribed in  
45 section 28-601.

1 <<Sec. 2. Section 41-1731, Arizona Revised Statutes, is amended to  
2 read:

3 41-1731. Peace officer training equipment fund; exemptions

4 A. The peace officer training equipment fund is established  
5 consisting of monies deposited pursuant to sections 12-114[,] [~~and~~]  
6 12-116.10 [AND 28-1602]. The state treasurer shall administer the fund.  
7 Monies in the fund may be used only for peace officer equipment.

8 B. The state treasurer shall invest and divest monies in the fund  
9 as provided by section 35-313, and monies earned from investment shall be  
10 credited to the fund.

11 C. Monies in the fund:

12 1. Do not revert to the state general fund at the end of the fiscal  
13 year.

14 2. Are exempt from the provisions of section 35-190 relating to  
15 lapsing of appropriations.

16 3. Are subject to legislative appropriation.>>

17 Enroll and engross to conform

18 Amend title to conform

LEO BIASIUCCI

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6/01/2026

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C: JR

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